

TAB 7



Board of Education Report

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File #: Rep-046-22/23, **Version:** 1

Textbooks and Instructional Materials Certification Resolution - PUBLIC HEARING

September 27, 2022

Integrated Library & Textbook Support Services

Division of Instruction

Action Proposed:

Adopt the attached resolution certifying the sufficiency of textbooks and instructional materials in the core and required subject areas.

Background:

As required by Education Code Section 60119, the Board of Education must annually certify, through a resolution after a public hearing, as to whether students in all District schools have sufficient textbooks or instructional materials in the core and required subject areas. The core and required subjects are mathematics, science, history/social science, reading/language arts, including the English language development (ELD) component, health, and world language (6-12).

The District has taken the following significant actions to ensure sufficient textbooks in the targeted core subjects:

- Expending \$5.5 million in FY 2021-22 for Core and Required textbooks (including textbooks for expanding grades and newly adopted K-7 Health and selected World Languages) and in the FY 2022-23 budgeting (including carryover from 2021-22) \$144.75 million primarily to purchase other Core and Required textbooks and newly adopted textbooks for school year 2022-23 and 2023-24.
- Requiring all teachers to certify textbook sufficiency in their classrooms.
- Requiring all principals to certify textbook sufficiency in their schools.
- Requiring Local District Superintendents to resolve identified insufficiencies in a timely manner.
- Requiring Local District Superintendents to certify sufficiency in their respective districts.
- Presenting policies and procedures to Local District personnel.
- Establishing a database to track all appropriate textbook requests, certifications, and LACOE audit results.
- Follow up on all insufficiencies identified as a result of norm day enrollment projections.

Expected Outcomes:

The Board will adopt the attached resolution declaring the District has sufficient textbooks, thus meeting compliance with Education Code 60119.

Board Options and Consequences:

If the District is found to have insufficient textbooks in the core subject areas and cannot remedy the insufficiency within three days of the Board meeting, the county superintendent would request the CDE purchase the textbooks or instructional materials necessary to comply with the sufficiency requirement. The funds used to make this purchase of instructional materials would be considered a loan that LAUSD would need to repay to the CDE. The CDE would also issue a public statement at the next SBE meeting indicating that

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the LA Unified Superintendent and Board of Education failed to provide students with sufficient instructional materials.

Policy Implications:

There is no change in District policy of targeting funding to purchase textbooks to ensure full compliance with Education Code Section 60119.

Budget Impact:

The Board of Education of the City of Los Angeles is required to conduct a public hearing to certify compliance with Education Code Section 60119. The District purchases textbooks from the General Funds Unrestricted amount. If the District is found to have insufficient textbooks in the core subject areas and cannot remedy the insufficiency within three days of the Board meeting, the county superintendent would request that the CDE purchase the textbooks or instructional materials necessary to comply with the sufficiency requirement. The funds used to make this purchase of instructional materials would be considered a loan that LAUSD would need to repay to the CDE. The CDE would also issue a public statement at the next SBE meeting indicating that the LAUSD Superintendent and Board of Education failed to provide students with sufficient instructional materials.

Student Impact:

Not Applicable.

Equity Impact:

Not Applicable.

Issues and Analysis:

Not Applicable.

Attachments:

Attachment A - Textbooks and Instructional Materials Resolution

Informatives:

Not Applicable.

Submitted:

08/23/22

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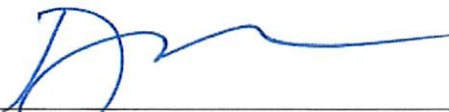
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

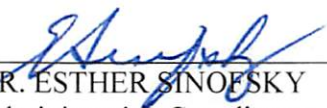
APPROVED & PRESENTED BY:


PEDRO A. GARCIA
Senior Executive Director
Division of Instruction

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

APPROVED & PRESENTED BY:


DR. ESTHER SINOFSKY
Administrative Coordinator
Division of Instruction/Integrated Library & Textbook
Support Services

 Approved as to form.

REVIEWED BY:


TONY ATIENZA
Director, Budget Services and Financial Planning

 Approved as to budget impact statement.

TEXTBOOKS AND INSTRUCTIONAL MATERIALS RESOLUTION

Whereas, As a recipient of state instructional materials funds, the Board of Education of the City of Los Angeles (“Board of Education”) is required under section 60119 of the Education Code to hold a public hearing and to encourage comment and participation from parents, teachers, bargaining unit members and leaders, and other community members on this resolution certifying the availability of textbooks and instructional materials for all pupils at all District schools; and

Whereas, The Board of Education provided at least ten (10) days notice of the public hearing posted in at least three (3) public places within the District that stated the time, place, and purpose of the hearing; and

Whereas, The Board of Education must make a determination, through resolution, as to whether each pupil in each school in the District has sufficient textbooks or instructional materials, or both, that are aligned to the content standards and are consistent with the content and cycles of the curriculum framework adopted by the State Board of Education in mathematics, science, history-social science and reading/language arts, including the English language development (“ELD”) component of the adopted program (“Core Subject Areas”); and

Whereas, The Board of Education must also make a determination as to whether each pupil enrolled in a foreign language or health course has sufficient textbooks or instructional materials, or both, that are consistent with the content and cycles of the curriculum frameworks adopted by the State Board of Education for those subjects (“Required Subject Areas”); and

Whereas, Section 60119 of the Education Code defines sufficient textbooks and instructional materials to mean that each pupil, including English learners, has a standards-aligned textbook or instructional materials, or both, to use in class and to take home in the Core and Required Subject Areas. Section 60119 does not require two sets of textbooks or instructional materials for each pupil; and

Whereas, In FY 2021-22 the District expended \$5.5 million for Core and Required textbooks (including textbooks for expanding grade levels and newly adopted Health [Grades K-7] and selected World Languages) and in the FY 2022-23, the District has a budget (including carryover from 2021-22) of \$144.75 million primarily to purchase other Core and Required textbooks and newly adopted textbooks for school year 2022-23 and 2023- 24 and as of August 16, 2022, the District has already expended and encumbered \$105.45 million; and

Whereas, In August and September of the 2022-2023 school year, all teachers, principals, and Local District Superintendents in the District have provided certifications and supporting documentation indicating whether each pupil in each school in the District has, as of the date of certification, sufficient textbooks or instructional materials, or both, in the Core and Required Subject Areas, and, in those instances in which the initial certification indicated that an insufficiency existed, that the insufficiency has been remedied; and

Whereas, The District has put into place procedures by which it will address, on an ongoing and continuous basis, reported subsequent identified needs for textbooks or instructional materials, or both, in the Core and Required Subject Areas; and

Whereas, The Superintendent of Schools, or designee, verifies, on an on-going and continuous basis, the subsequent identified needs for textbooks or instructional materials, or both, in Core and Required Subject Areas and funds appropriate requests within 10 days of the receipt of the request; and

Whereas, The Superintendent of Schools, or designee, will ensure, on an on-going and continuous basis, that orders for needed textbooks or instructional materials or both, in Core and Required Subject Areas will be placed within 5 days of Integrated Library & Textbook Support Services confirming the quantities required; and

Whereas, The Board of Education must make a determination regarding the availability of laboratory science equipment, as applicable, to science laboratory science courses offered in grades 9 to 12; and

Whereas, In August and September of the 2022-2023 school year, all principals of school offering science laboratory courses in grades 9 to 12, and Local District Superintendents in the District have provided certifications and supporting documentation indicating sufficient science laboratory equipment in science laboratory courses offered in grades 9 to 12; and now, therefore be it

Resolved, That the Board of Education of the City of Los Angeles finds that, as of the date of this hearing, for the 2022-23 school year, all pupils in all schools in the District have been provided with sufficient textbooks or instructional materials, or both, that are aligned to the content standards and are consistent with the content and cycles of the curriculum framework adopted by the State Board of Education in the Core and Required Subject areas; and

Resolved, Further, that the Board of Education declares that as of the date of this hearing, for the 2022-23 school year, that all science laboratory classes offered in grades 9 to 12 in the District have been provided with sufficient science laboratory materials; and

Resolved, Further, That the Board of Education declares that it has timely and fully complied with the requirements of section 60119 of the Education Code for the 2022-2023 school year.